

MEGA-COMPLAINT -- PIGORS v. SHADY OAKS ET AL.

STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

FOURTEENTH JUDICIAL CIRCUIT

Case No.: 2025-002760-CZ

Hon.: Kenneth Hoopes

ANDREW J. PIGORS,

Plaintiff, pro se

1977 Whitehall Rd, Lot 17

Muskegon County, Michigan

v.

SHADY OAKS PARK MHP, LLC;

SHADY OAKS MHP, LLC;

HOMES OF AMERICA, LLC;

ALDEN GLOBAL CAPITAL, LLC;

PARTRIDGE EQUITY GROUP;

JEREMY BROWN (Attorney);

AARON D. COX (Attorney, P69346);

HENRY BRANDEL (Individual);

JANE/JOHN DOE PARK MANAGER(S) (Name TBD),

Defendants.

**VERIFIED MEGA-COMPLAINT FOR DAMAGES, INJUNCTIVE
RELIEF, AND DECLARATORY JUDGMENT**

Plaintiff Andrew J. Pigors ("Plaintiff" or "Pigors"), proceeding pro se, by and through this Verified Mega-Complaint, alleges and states as follows against Defendants, jointly and severally:

PART I: PARTIES

1. PLAINTIFF

1. Plaintiff Andrew J. Pigors is a Michigan resident, natural person, and lawful titleholder of a manufactured home located at Lot 17, 1977 Whitehall Rd, Muskegon County, Michigan ("the Property" or "the Home").

2. Plaintiff is a father to a minor child ("Lincoln") with whom he had active, court-ordered parenting time until Defendants' unlawful actions destroyed his housing stability and directly caused the suspension of his custody rights.

2. DEFENDANTS

3. **Shady Oaks Park MHP, LLC** ("Shady Oaks Park") is, upon information and belief, a Michigan limited liability company that operates the Shady Oaks manufactured housing community in Muskegon County, Michigan.

4. **Shady Oaks MHP, LLC** ("Shady Oaks MHP") is a distinct Michigan limited liability company whose name and filings were used in related eviction filings. Upon information and belief, this entity has been dissolved, yet its name was used in court proceedings on or about July 10, 2025, constituting unauthorized practice and fraud upon the court.

5. **Homes of America, LLC** ("HOA") is a management company that manages and/or operates manufactured housing communities including Shady Oaks. HOA acted through on-site personnel during all events alleged herein and exercised control over leasing, billing, maintenance, eviction, and property management decisions. HOA's attorney, Aaron D. Cox of Law Offices of Aaron D. Cox, PLLC (P69346), represented defendants in eviction proceedings.

6. **Alden Global Capital, LLC** ("Alden Global") is, upon information and belief, a New York-based investment firm that exercises ownership, management, and/or financial control over Homes of America, LLC and/or the park entities. Alden Global directed enterprise-level policies, including rent-increase mandates, fee structures, eviction strategies, and sale-blocking practices, as part of an enterprise structure designed to maximize revenue extraction while shielding liability.

7. **Partridge Equity Group** ("Partridge") is an affiliated entity within the Alden Global Capital corporate structure. Plaintiff's \$1,300.26 check written to "Shady Oaks MHP" was cashed by Partridge Securities, demonstrating the interconnected financial structure and establishing Partridge as a direct participant in the collection and disbursement of Plaintiff's funds.

8. **Jeremy Brown** ("Brown") is an attorney who, upon information and belief, filed or caused to be filed a fraudulent assertion of res judicata in proceedings related to Plaintiff's mobile home, designed to prevent Plaintiff from asserting his property rights and effectuating the sale of his home.

9. **Aaron D. Cox** (P69346) is an attorney with the Law Offices of Aaron D. Cox, PLLC, who represented Defendants Shady Oaks and Homes of America in eviction proceedings and made representations to the court on behalf of a dissolved entity.

10. **Henry Brandel** ("Brandel") is a neighbor and participant in the July 17, 2025 set-out who, acting under the direction or approval of the property manager and/or representatives of Shady Oaks Park, physically removed, retained, and/or destroyed Plaintiff's personal property.

11. **Jane/John Doe Park Manager(s)** are the on-site manager(s) of Shady Oaks who:
(a) sent text messages to a prospective buyer stating that Plaintiff "no longer owns his home, he abandoned it, they have a lawyer working on taking and selling his home";
(b) blocked the sale of Plaintiff's mobile home on at least three separate occasions; and
(c) directed or facilitated the set-out of Plaintiff's property.

PART II: JURISDICTION AND VENUE

12. This Court has jurisdiction under MCL 600.601 and MCL 600.605. The amount in controversy exceeds \$25,000.00, exclusive of interest and costs.

13. Venue is proper in Muskegon County under MCL 600.1621 and MCL 600.1605 because the real property at issue is located in Muskegon County, the acts giving rise to this action occurred in Muskegon County, and all individual Defendants reside or conduct business in Muskegon County.

14. This Court has personal jurisdiction over all Defendants, including the corporate Defendants, by virtue of their transaction of business in Michigan, their ownership and operation of real property in Michigan, and their commission of tortious acts within Michigan. MCL 600.711; MCL 600.715.

PART III: STATEMENT OF FACTS

A. BACKGROUND AND HOME OWNERSHIP

15. Plaintiff is the lawful titleholder of a manufactured home located at Lot 17, 1977 Whitehall Rd, Muskegon County, Michigan. Title documentation (Exhibit -- TITLE NEW PIGORS SHADY 1977 Lot 17) confirms Plaintiff's ownership.

16. Plaintiff leased the lot underlying the home from Defendants and paid lot rent as required.

17. Plaintiff and his minor son Lincoln resided at the Property as their primary domicile. Plaintiff had active, court-ordered parenting time with Lincoln.

B. ENTERPRISE STRUCTURE AND CORPORATE SHELL GAME

18. Defendants Alden Global Capital, Partridge Equity Group, Homes of America, Shady Oaks Park MHP LLC, and Shady Oaks MHP LLC operate as an interconnected enterprise. Money flows from tenants through local park entities to HOA and ultimately to Alden Global/Partridge.

19. Plaintiff's \$1,300.26 check made payable to "Shady Oaks MHP" was cashed by **Partridge Securities**, proving the financial integration of the enterprise and establishing that Partridge directly profits from park operations.

20. Shady Oaks MHP, LLC was dissolved, yet its name continued to be used in court filings as late as July 10, 2025, constituting unauthorized practice by a defunct entity and fraud upon the court.

C. LEDGER FRAUD AND PAYMENT MANIPULATION

21. Defendants maintained fraudulent accounting ledgers that misrepresented Plaintiff's balance, misapplied payments, and layered unauthorized fees to create the false appearance of nonpayment.

22. Defendants refused to accept or properly credit valid payments, including payments from MDHHS and TrueNorth Community Services assistance programs, deliberately

engineering a false arrears balance to justify eviction.

23. Defendants imposed unauthorized utility charges of approximately \$120/month for water/sewer without proper metering or disclosure, in violation of the Mobile Home Commission Act and Truth in Renting Act.

24. The billing ledger submitted by Shady Oaks on May 27, 2025 shows unlawful fees charged after the April 16 order, further evidencing the pattern of fraudulent billing.

D. COERCED LEASE AND RENT INCREASES

25. In late 2023, Defendants forced a rent increase to \$695/month. Plaintiff was told to accept the increase or face eviction, with no legal justification or statutory notice provided as required by the Mobile Home Commission Act.

26. On or about March 26, 2024, Plaintiff was coerced under threat of eviction into signing an off-site lease at Cricklewood (different location), with different terms and higher rent, contrary to Michigan law and without meaningful consent.

27. The coerced lease identifies only "Shady Oaks" without specifying a legal entity, further evidencing the shell-entity confusion deliberately maintained by Defendants.

E. SEWAGE AND HABITABILITY VIOLATIONS

28. From late 2024 through mid-2025, raw sewage was present near Plaintiff's lot. The Michigan Department of Environment, Great Lakes, and Energy (EGLE) issued violations to the park.

29. Despite the sewage conditions rendering the premises uninhabitable, Defendants continued billing utilities without remediation credits and failed to timely remediate the hazard, constituting both constructive eviction and breach of the implied warranty of habitability.

30. Witness Mitchell Shafer has provided an affidavit (Exhibit A) and emails (Exhibit E) corroborating the sewage conditions and Defendants' failure to remediate.

F. ATTEMPTED BREAK-IN AND PROPERTY INTERFERENCE (JULY 3, 2025)

31. On or about July 3, 2025, two individuals attempted to break into Plaintiff's home and were captured on Plaintiff's security cameras (Exhibit D-1).

32. Those same individuals appeared during the later set-out on July 17, 2025, establishing coordination and premeditation.

33. At the time of the break-in attempt, Plaintiff was away visiting family, including his son. Witness Mitchell Shafer was asked to keep watch over Plaintiff's home and had firsthand visual knowledge of the unauthorized entry attempt.

G. THE UNLAWFUL SET-OUT (JULY 17, 2025)

34. On July 17, 2025, with sheriff presence, Defendants and their agents drilled locks on Plaintiff's home, entered without authorization, cleared the interior, and removed or destroyed Plaintiff's personal property and appliances.

35. Within 24 hours of the set-out, a "FREE" sign was placed on Plaintiff's home, and neighbor Henry Brandel participated in removing and distributing Plaintiff's belongings.

36. The writ's execution did not authorize non-officers to destroy or distribute personal property, and no proper inventory or receipts were provided as required by law.

37. The set-out was conducted using the name of a dissolved entity (Shady Oaks MHP, LLC), rendering the entire proceeding legally defective.

H. BLOCKED SALES -- THREE TIMES

38. Plaintiff attempted to sell his mobile home to willing buyers on at least three separate occasions. Each time, Defendants blocked the sale through various means, including:

- Refusing to approve buyer lot-lease applications without lawful basis
- Park manager sending text messages to prospective buyers stating that Plaintiff "no longer owns his home, he abandoned it, they have a lawyer working on taking and selling his home"
- Imposing unreasonable conditions and fees on prospective buyers

39. These blocked sales prevented Plaintiff from realizing the equity in his home and constituted tortious interference with Plaintiff's business relationships with prospective buyers.

40. The park manager's statements to buyers that Plaintiff "abandoned" his home and "no longer owns" it were false, defamatory, and constituted slander of title, as Plaintiff

remained the lawful titleholder at all times.

I. JEREMY BROWN'S FRAUDULENT RES JUDICATA

41. Attorney Jeremy Brown filed or caused to be filed a fraudulent assertion of res judicata designed to bar Plaintiff from asserting his property rights and prevent the sale of his home.

42. The res judicata assertion was false because the prior proceedings did not involve the same claims, the same parties, or the same transactions, and no final adjudication on the merits had occurred as to Plaintiff's property rights.

43. Brown's fraudulent filing was part of the coordinated scheme to strip Plaintiff of his home and equity.

J. THE CONSTRUCTED EVICTION --> HOMELESSNESS --> CUSTODY DESTRUCTION PIPELINE

44. As a direct and proximate result of Defendants' actions, Plaintiff became homeless, was forced to sleep in his car, and lost his stable domicile.

45. Plaintiff's "unstable housing" status was then used in custody proceedings in the 14th Circuit Court Family Division to suspend Plaintiff's parenting time with his minor son Lincoln.

46. Plaintiff has been deprived of contact with his son for 571+ days and counting. The custody loss flows directly from the constructed eviction.

47. Defendants' actions thus created a chain of causation:

- Fraudulent ledgers --> False arrears --> Pretextual eviction
- Eviction --> Homelessness --> "Unstable housing" argument in custody court
- Custody suspension --> 571+ days lost parenting time
- Lost parenting time --> Severe emotional distress to both Plaintiff and child

PART IV: COUNTS

COUNT I: MICHIGAN RICO -- CONDUCTING OR PARTICIPATING IN ENTERPRISE THROUGH PATTERN OF RACKETEERING ACTIVITY

(MCL 750.159i -- Against All Defendants)

48. Plaintiff incorporates all preceding paragraphs by reference.

49. Defendants constitute an "enterprise" within the meaning of MCL 750.159f, consisting of the association of Alden Global Capital, Partridge Equity Group, Homes of America LLC, Shady Oaks Park MHP LLC, Shady Oaks MHP LLC, their officers, managers, and attorneys, associated together for the common purpose of operating manufactured housing communities for profit.

50. Defendants engaged in a "pattern of racketeering activity" within the meaning of MCL 750.159f(c), consisting of at least two incidents of racketeering activity with the

same or similar purpose, result, participants, victims, and methods of commission, within the prescribed time period:

a. **Ledger Fraud (MCL 750.218 -- Obtaining money by false pretenses):** Defendants manipulated billing ledgers to create false arrears, misapplied payments, and imposed unauthorized fees, obtaining money from Plaintiff through false pretenses.

b. **Check Fraud / Financial Exploitation:** Plaintiff's \$1,300.26 check to "Shady Oaks MHP" was cashed by Partridge Securities, an entity not identified to Plaintiff as the payee, constituting fraud in the disbursement of funds.

c. **Fraud Upon the Court:** Defendants filed court documents under the name of a dissolved entity (Shady Oaks MHP, LLC), made false representations about Plaintiff's property status, and submitted false res judicata claims through Attorney Jeremy Brown.

d. **Theft/Conversion (MCL 750.356):** Defendants, through the July 17, 2025 set-out, took possession of, removed, and destroyed Plaintiff's personal property without authorization and beyond the scope of any writ.

e. **Extortion (MCL 750.213):** Defendants used threats of eviction to coerce Plaintiff into signing a new lease with unfavorable terms and accepting unauthorized rent increases.

51. The racketeering activity was related in that it was directed at the same victim (Plaintiff), committed by the same enterprise participants, served the common purpose of extracting maximum revenue while stripping Plaintiff of his property and rights, and demonstrated a pattern of escalating abuse.

52. As a direct and proximate result of Defendants' pattern of racketeering activity, Plaintiff suffered damages including loss of home, loss of personal property, loss of equity, loss of custody, homelessness, and severe emotional distress.

53. Pursuant to MCL 750.159j(1), Plaintiff is entitled to **treble damages** (three times actual damages sustained), plus costs of investigation, reasonable attorney fees, and court costs.

COUNT II: CONSTRUCTIVE EVICTION

(Common Law -- Against Shady Oaks Park, Shady Oaks MHP, HOA, Alden Global)

54. Plaintiff incorporates all preceding paragraphs by reference.

55. Defendants owed Plaintiff a duty to maintain the leased premises in a habitable condition suitable for residential occupancy.

56. Defendants breached this duty by:

- a. Permitting raw sewage to accumulate near Plaintiff's lot for months (EGLE violations issued)
- b. Failing to remediate the sewage hazard despite notice and regulatory action
- c. Continuing to bill utilities without remediation credits during the sewage crisis
- d. Creating an atmosphere of harassment through blocked sales, fraudulent ledgers, and threats

57. These conditions were so severe that they substantially interfered with Plaintiff's use and enjoyment of the premises, effectively forcing Plaintiff from his home.

58. Plaintiff suffered damages including loss of habitable housing, cost of alternative housing, loss of property value, and consequential damages to custody.

COUNT III: WRONGFUL EVICTION -- UNLAWFUL OUSTER AND SELF-HELP

(MCL 600.2918 -- Against Shady Oaks Park, Shady Oaks MHP, HOA, Henry Brandel)

59. Plaintiff incorporates all preceding paragraphs by reference.

60. MCL 600.2918 provides that a person who is ejected from real property in a forcible, unlawful, or peaceable manner without legal authority is entitled to recover damages.

61. Defendants' eviction was wrongful because:

- a. The eviction was prosecuted under the name of a dissolved entity (Shady Oaks MHP, LLC)
- b. The underlying arrears were fraudulently manufactured through ledger manipulation
- c. The set-out exceeded the scope of any writ by destroying personal property and allowing third parties (Brandel) to take and distribute belongings
- d. No proper inventory or receipts were provided
- e. Non-officers (Brandel and others) participated in the removal and destruction

62. Pursuant to MCL 600.2918, Plaintiff is entitled to statutory damages, actual damages, and such other relief as the court deems just.

COUNT IV: SLANDER OF TITLE

(MCL 565.108 -- Against All Park Defendants, Doe Park Manager)

63. Plaintiff incorporates all preceding paragraphs by reference.

64. Plaintiff is and at all relevant times was the lawful titleholder of the manufactured home at Lot 17.

65. The park manager published false statements to prospective buyers, specifically:

- That Plaintiff "no longer owns his home"
- That Plaintiff "abandoned" the home
- That "they have a lawyer working on taking and selling his home"

66. These statements were false. Plaintiff never abandoned the Property and maintained legal title at all times.

67. The statements were published with malice, as they were made deliberately to interfere with Plaintiff's sale of the home and to advance Defendants' scheme to seize the property.

68. As a direct and proximate result of Defendants' slander of title, Plaintiff suffered:

- Three blocked sales of the mobile home
- Loss of equity trapped in the unsaleable property
- Diminished property value due to cloud on title

- Litigation costs to clear title

69. Under MCL 565.108, Plaintiff is entitled to actual damages, costs, and reasonable attorney fees.

COUNT V: TORTIOUS INTERFERENCE WITH BUSINESS RELATIONS

(Common Law -- Against All Park Defendants, Doe Park Manager)

70. Plaintiff incorporates all preceding paragraphs by reference.

71. Plaintiff had existing or prospective business relationships with at least three prospective buyers of his mobile home.

72. Defendants had knowledge of these relationships, as the buyers were required to apply through Defendants for lot-lease approval.

73. Defendants intentionally interfered with these relationships through:

- a. Refusing buyer lot-lease applications without lawful basis
- b. Sending text messages to buyers making false statements about ownership and abandonment
- c. Imposing unreasonable conditions and fees on buyers
- d. Filing fraudulent res judicata to prevent sale

74. Defendants' interference was improper and not justified by any legitimate business interest.

75. As a direct result, all three sales fell through, causing Plaintiff to lose the fair market value of his home, trapped equity, and the opportunity to use sale proceeds to secure alternative housing and stabilize his custody situation.

COUNT VI: FRAUD AND MISREPRESENTATION

(Common Law -- Against All Defendants)

76. Plaintiff incorporates all preceding paragraphs by reference.

77. Defendants made material misrepresentations of fact:

- a. Fabricated ledger balances showing false arrears
- b. Misrepresented that payments were not received or not properly applied
- c. Misrepresented to the court that a dissolved entity (Shady Oaks MHP, LLC) was a valid party
- d. Misrepresented to buyers that Plaintiff abandoned his home
- e. Jeremy Brown's fraudulent assertion of res judicata
- f. Aaron D. Cox's representations on behalf of a defunct entity

78. These misrepresentations were made knowingly and intentionally, or with reckless disregard for their truth.

79. The misrepresentations were made with the intent to deceive Plaintiff, the court, and third parties (buyers), and to induce reliance.

80. Plaintiff and third parties reasonably relied on these misrepresentations, including the court in eviction proceedings.

81. As a direct result, Plaintiff suffered damages including wrongful eviction, loss of property, loss of equity, homelessness, and custody destruction.

COUNT VII: CONVERSION

(MCL 600.2919a -- Against Shady Oaks Park, HOA, Henry Brandel)

82. Plaintiff incorporates all preceding paragraphs by reference.

83. Plaintiff had a right to possession of his personal property located within the manufactured home, including but not limited to furniture, appliances, electronics, clothing, documents, and personal effects.

84. On July 17, 2025 and thereafter, Defendants wrongfully exercised dominion and control over Plaintiff's personal property, including:

- a. Drilling locks and entering the home
- b. Removing personal property and appliances
- c. Destroying personal property
- d. Allowing third parties (Brandel) to take and distribute property
- e. Placing a "FREE" sign on the home within 24 hours, inviting public taking of contents

85. Defendants' exercise of dominion was inconsistent with and in derogation of Plaintiff's ownership rights.

86. Pursuant to MCL 600.2919a, Plaintiff is entitled to **three times the amount of actual damages sustained**, plus costs and reasonable attorney fees.

COUNT VIII: TRESPASS

(Common Law -- Against Shady Oaks Park, HOA, Henry Brandel)

87. Plaintiff incorporates all preceding paragraphs by reference.

88. Plaintiff is the lawful titleholder of the manufactured home at Lot 17. Although Defendants own the lot, Plaintiff's home is personal property to which Plaintiff holds title.

89. On July 3, 2025, agents of Defendants or persons acting in concert with them attempted to forcibly enter Plaintiff's home, as captured on security camera (Exhibit D-1).

90. On July 17, 2025, Defendants and their agents drilled locks and physically entered Plaintiff's home without Plaintiff's consent and beyond the scope of any lawful authority.

91. Defendants' entry was unauthorized, as the writ did not authorize destruction of locks or entry by non-officers such as Brandel.

92. As a result, Plaintiff suffered damage to the home (drilled locks, structural damage), loss of personal property, and emotional distress.

COUNT IX: BREACH OF LEASE / BREACH OF CONTRACT

(Contract -- Against Shady Oaks Park, Shady Oaks MHP, HOA)

93. Plaintiff incorporates all preceding paragraphs by reference.

94. A valid lease agreement existed between Plaintiff and Defendants for the lot underlying Plaintiff's manufactured home.

95. Defendants breached the lease and/or their contractual obligations by:

- a. Failing to maintain the premises in habitable condition (sewage)
- b. Imposing unauthorized rent increases without proper notice
- c. Imposing unauthorized utility charges and fees
- d. Coercing Plaintiff into signing a replacement lease under duress
- e. Refusing to accept valid payments (MDHHS, TrueNorth)
- f. Failing to provide proper accounting of charges and credits
- g. Blocking Plaintiff's right to sell his home (a right protected under the Mobile Home Commission Act)

96. Defendants' breaches were material and caused Plaintiff substantial damages.

COUNT X: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (IIED)

(Common Law -- Against All Defendants)

97. Plaintiff incorporates all preceding paragraphs by reference.

98. Defendants engaged in extreme and outrageous conduct, including:

- a. Fabricating ledger balances and manufacturing false arrears to justify eviction
- b. Threatening to "take and sell" Plaintiff's home
- c. Sending text messages claiming Plaintiff "abandoned" his home while Plaintiff was visiting his son
- d. Blocking three sales of the home, trapping Plaintiff's equity
- e. Conducting an unlawful set-out, drilling locks, destroying property
- f. Placing a "FREE" sign on Plaintiff's home within 24 hours
- g. Allowing neighbor Brandel to take and distribute Plaintiff's belongings
- h. Knowingly creating conditions that would result in Plaintiff's homelessness
- i. Creating a chain of events designed to destroy Plaintiff's custody of his child

99. This conduct exceeds all possible bounds of decency, is atrocious, and is utterly intolerable in a civilized community.

100. Defendants knew or should have known that their conduct would cause severe emotional distress, particularly given Plaintiff's role as a parent with active custody.

101. Plaintiff suffered severe emotional distress, including depression, anxiety, grief from loss of child contact, humiliation from homelessness, and trauma from witnessing the destruction of his home and belongings.

COUNT XI: NEGLIGENCE

(Common Law -- Against Shady Oaks Park, HOA, Alden Global)

102. Plaintiff incorporates all preceding paragraphs by reference.

103. Defendants owed Plaintiff a duty of reasonable care as landlords/park operators to maintain safe community conditions, follow mobile home park regulations, and properly manage billing and accounting.

104. Defendants breached this duty by:

- a. Failing to remediate sewage conditions despite EGLE violations
- b. Failing to properly meter and bill utilities
- c. Failing to maintain accurate ledgers
- d. Failing to follow statutory procedures for lot-rent increases
- e. Failing to follow statutory procedures for eviction of mobile home owners
- f. Failing to prevent unauthorized persons from accessing Plaintiff's property

105. As a direct and proximate result, Plaintiff suffered damages including property damage, personal property loss, loss of housing, and consequential custody harm.

COUNT XII: MOBILE HOME COMMISSION ACT VIOLATIONS

(MCL 125.2301 et seq. -- Against Shady Oaks Park, Shady Oaks MHP, HOA, Alden Global)

106. Plaintiff incorporates all preceding paragraphs by reference.

107. The Michigan Mobile Home Commission Act (MHCA) governs the operation of mobile home parks and protects the rights of mobile home owners, including:

- a. MCL 125.2312c -- Right to sell mobile home in park
- b. MCL 125.2312d -- Restrictions on park interference with sales
- c. MCL 125.2312a -- Required notice for lot-rent increases
- d. MCL 125.2314 -- Park obligations for habitability and maintenance
- e. MCL 125.2307 -- Licensing requirements

108. Defendants violated the MHCA by:

- a. Blocking Plaintiff's right to sell his home three times
- b. Interfering with prospective buyers
- c. Imposing unauthorized rent increases without statutory notice
- d. Failing to maintain habitable conditions (sewage)
- e. Operating under the name of a dissolved entity
- f. Conducting unlawful eviction procedures

109. Each violation subjects Defendants to penalties up to \$5,000 per violation under MCL 125.2312i.

COUNT XIII: TRUTH IN RENTING ACT VIOLATIONS

(MCL 554.631 et seq. -- Against Shady Oaks Park, Shady Oaks MHP, HOA)

110. Plaintiff incorporates all preceding paragraphs by reference.

111. The Truth in Renting Act prohibits landlords from including or enforcing lease provisions that violate Michigan law or that attempt to waive tenants' statutory rights.

112. Defendants violated the Act by:

- a. Imposing or seeking to enforce terms and charges contrary to Michigan law
- b. Imposing unapproved utility fees without proper disclosure
- c. Coercing Plaintiff into signing a replacement lease with illegal terms
- d. Including provisions that attempted to waive Plaintiff's right to sell his home
- e. Charging fees not authorized by the lease or statute

113. Illegal lease provisions are void and unenforceable under MCL 554.633.

114. Plaintiff is entitled to actual damages, costs, and reasonable attorney fees under MCL 554.636.

COUNT XIV: LOT RENT OVERCHARGES AND UNAUTHORIZED FEES

(MCL 125.2312a; Contract -- Against Shady Oaks Park, HOA)

115. Plaintiff incorporates all preceding paragraphs by reference.

116. Defendants imposed unauthorized lot-rent increases (to \$695/month) without the required statutory notice period and without lawful justification.

117. Defendants imposed unauthorized utility surcharges of approximately \$120/month for water/sewer without proper metering, in violation of MCL 125.2312a and applicable utility regulations.

118. Defendants layered additional unauthorized fees onto Plaintiff's ledger account, contributing to the manufactured false arrears.

119. Plaintiff is entitled to recovery of all overcharges and unauthorized fees, plus statutory penalties.

COUNT XV: RETALIATORY EVICTION

(MCL 600.5720 -- Against Shady Oaks Park, Shady Oaks MHP, HOA)

120. Plaintiff incorporates all preceding paragraphs by reference.

121. MCL 600.5720 prohibits a landlord from retaliating against a tenant who has exercised a legal right, including:

- a. Complaining to a government agency about housing conditions
- b. Organizing or joining a tenants' association
- c. Exercising a legal right or remedy

122. Prior to the eviction proceedings, Plaintiff:

- a. Disputed fraudulent ledger charges
- b. Reported sewage conditions that led to EGLE violations
- c. Asserted his right to sell his home under the MHCA
- d. Objected to unauthorized rent increases and fee impositions

123. Within the statutory presumptive period following these protected activities, Defendants initiated or escalated eviction proceedings.

124. The temporal proximity between Plaintiff's protected activities and Defendants' retaliatory actions creates a rebuttable presumption of retaliatory motive under MCL 600.5720.

125. Plaintiff is entitled to damages, including return to possession, actual damages, and costs.

COUNT XVI: FAIR HOUSING ACT VIOLATIONS

(42 USC 3601 et seq. -- Against All Park Defendants)

126. Plaintiff incorporates all preceding paragraphs by reference.

127. The Fair Housing Act prohibits discrimination in housing on the basis of race, color, national origin, religion, sex, familial status, or disability.

128. Defendants' treatment of Plaintiff constitutes discriminatory conduct, including:

- a. Disparate treatment in the application of lease terms and billing
- b. Discriminatory enforcement of park rules targeting Plaintiff
- c. Interference with Plaintiff's right to sell his home
- d. Retaliation for exercising fair housing rights

129. Defendants' pattern of conduct reflects systematic targeting of Plaintiff for adverse treatment, including manufactured arrears, blocked sales, and a constructed eviction pipeline.

130. Under the Fair Housing Act, Plaintiff is entitled to actual damages, punitive damages of up to \$16,000+ per violation, injunctive relief, and reasonable attorney fees. See *Texas Dept of Housing v. Inclusive Communities*, 576 U.S. 519 (2015) (disparate impact claims cognizable under FHA).

COUNT XVII: CIVIL RIGHTS VIOLATION

(42 USC 1983 -- Against All Defendants)

131. Plaintiff incorporates all preceding paragraphs by reference.

132. Defendants, acting under color of state law or in conspiracy with state actors (the Muskegon County Sheriff's Department executed the set-out), deprived Plaintiff of rights, privileges, and immunities secured by the Constitution and laws of the United States, including:

- a. Fourteenth Amendment Due Process -- deprivation of property (home and personal property) without adequate due process

- b. Fourteenth Amendment Due Process -- deprivation of liberty interest in parental relationship without due process (Troxel v. Granville, 530 U.S. 57 (2000))
- c. Fourth Amendment -- unreasonable seizure of personal property

133. Defendants' conspiracy with state actors to accomplish the unlawful eviction and property destruction satisfies the state-action requirement. See Dennis v. Sparks, 449 U.S. 24 (1980) (private parties acting in concert with state officials subject to Section 1983 liability).

134. Plaintiff is entitled to compensatory damages, punitive damages, injunctive relief, and attorney fees under 42 USC 1988.

COUNT XVIII: CIVIL CONSPIRACY

(Common Law -- Against All Defendants)

135. Plaintiff incorporates all preceding paragraphs by reference.

136. Defendants acted in concert pursuant to a common plan or scheme to accomplish the unlawful objectives of:

- a. Stripping Plaintiff of his home and equity
- b. Manufacturing false arrears through ledger fraud
- c. Blocking Plaintiff's ability to sell his home
- d. Constructing an eviction to create homelessness
- e. Using Plaintiff's resulting homelessness to destroy his custody rights

137. The following overt acts were committed in furtherance of the conspiracy:

- a. Alden Global/Partridge directed revenue-maximization policies
- b. HOA/park management implemented fraudulent ledgers
- c. Park manager texted buyers with false abandonment claims
- d. Attorney Brown filed fraudulent res judicata
- e. Attorney Cox represented a dissolved entity in court
- f. Brandel participated in property destruction during set-out

138. Each Defendant is jointly and severally liable for all damages resulting from the conspiracy.

COUNT XIX: LOSS OF DOMICILE / FORCED HOMELESSNESS

(Derivative Harm -- Against All Defendants)

139. Plaintiff incorporates all preceding paragraphs by reference.

140. As a direct and proximate result of Defendants' combined wrongful acts, Plaintiff was rendered homeless, forced to sleep in his car, and lost his stable domicile.

141. The loss of domicile was not an incidental consequence but the foreseeable and intended result of Defendants' scheme: the ledger fraud manufactured the pretext for eviction, the eviction destroyed Plaintiff's housing, and the blocked sales prevented Plaintiff from recovering funds to secure alternative housing.

142. Plaintiff's damages from loss of domicile include:

- a. Cost of replacement housing from the date of eviction to present and ongoing
- b. Loss of personal belongings destroyed in the set-out
- c. Physical health impacts from homelessness
- d. Psychological and emotional trauma

COUNT XX: CUSTODY DAMAGE -- DESTRUCTION OF PARENTAL RELATIONSHIP

(Derivative Harm -- Against All Defendants)

143. Plaintiff incorporates all preceding paragraphs by reference.

144. Plaintiff had active, court-ordered parenting time with his minor son Lincoln prior to the eviction.

145. Defendants' eviction rendered Plaintiff homeless, which was then used as the basis for suspending Plaintiff's parenting time in the 14th Circuit Court Family Division.

146. The causal chain is direct and unbroken:

- Defendants' fraudulent ledgers --> manufactured arrears
- Manufactured arrears --> pretextual eviction
- Eviction --> homelessness
- Homelessness --> "unstable housing" argument in custody proceedings

- "Unstable housing" argument --> suspension of parenting time
- Suspension --> 571+ days without parenting time (and counting)

147. Plaintiff's damages from custody destruction include:

- a. 571+ days of lost parenting time, valued at per-diem rates established by Michigan courts
- b. Emotional distress from separation from his child
- c. Damage to the parent-child bond (potentially irreparable)
- d. Child's own emotional and developmental harm
- e. Costs of future legal proceedings to restore custody
- f. Loss of parental guidance during critical developmental period

148. The destruction of Plaintiff's parental relationship is among the most severe harms a person can suffer, recognized as a fundamental liberty interest under the Fourteenth Amendment. *Troxel v. Granville*, 530 U.S. 57 (2000).

COUNT XXI: LOSS OF PROPERTY VALUE

(Derivative Harm -- Against All Defendants)

149. Plaintiff incorporates all preceding paragraphs by reference.

150. As a direct result of Defendants' actions, the value of Plaintiff's manufactured home has been severely diminished or destroyed:

- a. The set-out damaged the home's interior and fixtures

- b. The "FREE" sign and unauthorized distribution of contents degraded the property
- c. The cloud on title from Defendants' false statements impairs marketability
- d. The home's condition has deteriorated due to Defendants' interference

151. Plaintiff is entitled to damages equal to the difference between the fair market value of the home before and after Defendants' tortious conduct.

COUNT XXII: LOSS OF EQUITY -- TRAPPED VALUE FROM BLOCKED SALES

(Derivative Harm -- Against All Park Defendants, Doe Park Manager, Jeremy Brown)

152. Plaintiff incorporates all preceding paragraphs by reference.

153. Plaintiff had willing, able, and ready buyers for his manufactured home on at least three occasions.

154. Defendants deliberately blocked each sale, preventing Plaintiff from converting his home equity into cash that could have been used for alternative housing, legal fees, and custody-stabilizing expenses.

155. The blocked sales caused Plaintiff to lose the fair market value of his home (estimated value TBD based on comparable sales) multiplied by three opportunities.

156. This trapped equity directly contributed to Plaintiff's homelessness and inability to stabilize his custody situation.

PART V: DAMAGES

157. As a direct and proximate result of Defendants' acts and omissions described herein, Plaintiff has suffered and continues to suffer the following damages:

A. ACTUAL / COMPENSATORY DAMAGES

Category	Description	Estimated Range
Property Value	Fair market value of manufactured home destroyed/diminished	\$15,000 - \$45,000
Lost Equity	Three blocked sales x fair market value	\$45,000 - \$135,000
Personal Property	Items lost/destroyed in set-out (appliances, furniture, electronics, documents)	\$10,000 - \$35,000
Replacement Housing	Cost of alternative housing since eviction	\$12,000 - \$24,000
Moving/Storage	Emergency costs incurred	\$2,000 - \$5,000
Lost Rent/Overcharges	Unauthorized fees and rent overcharges	\$5,000 - \$15,000
Lost Income	Employment disruption from homelessness	\$17,500 - \$52,500

B. CONSEQUENTIAL DAMAGES

Category	Description	Estimated Range
Custody Loss	571+ days lost parenting time at per-diem value	\$100,000 - \$500,000
Child Therapy	Counseling costs for child	\$5,000 - \$25,000
Relationship Damage	Damage to parent-child bond	\$50,000 - \$250,000
Credit Damage	Eviction impact on credit score	\$5,000 - \$25,000
Future Legal Costs	Cost to restore custody	\$10,000 - \$50,000

C. STATUTORY DAMAGES

Statute	Multiplier/Amount
RICO Treble Damages (MCL 750.159j)	3x actual damages
Conversion Treble Damages (MCL 600.2919a)	3x actual damages on converted property
Mobile Home Commission Act (MCL 125.2312i)	Up to \$5,000 per violation (multiple violations)
Truth in Renting Act (MCL 554.636)	Actual damages + attorney fees
Fair Housing Act (42 USC 3613)	Up to \$16,000+ per violation
Wrongful Eviction (MCL 600.2918)	Statutory damages

D. PUNITIVE / EXEMPLARY DAMAGES

158. Defendants' conduct was willful, malicious, and in reckless disregard for Plaintiff's rights, warranting punitive damages under:

- a. State Farm v. Campbell, 538 U.S. 408 (2003) analysis
- b. 42 USC 1983 -- punitive damages for constitutional violations
- c. Common law -- punitive damages for outrageous conduct

159. Punitive damages should reflect the reprehensibility of Defendants' conduct, the ratio of punitive to compensatory damages (single-digit multiplier per State Farm), and the Defendants' financial condition, particularly Alden Global Capital's substantial net worth.

E. TOTAL ESTIMATED DAMAGES RANGE

Component	Low Estimate	High Estimate
Actual/Compensatory	\$106,500	\$311,500
Consequential	\$170,000	\$850,000
RICO Treble (on actual)	\$319,500	\$934,500
Conversion Treble (on property)	\$30,000 - \$105,000	\$105,000

Statutory	\$50,000	\$200,000
Punitive (3x-9x compensatory)	\$829,500	\$10,453,500
TOTAL	**\$1,505,500**	**\$12,854,500**

PART VI: PRAYER FOR RELIEF

WHEREFORE, Plaintiff Andrew J. Pigors respectfully prays that this Court:

- A. Enter judgment for Plaintiff on all Counts;
- B. Award compensatory damages in an amount to be proven at trial;
- C. Award treble damages under MCL 750.159j (RICO) and MCL 600.2919a (Conversion);
- D. Award statutory damages under MCL 600.2918, MCL 125.2312i, MCL 554.636, and 42 USC 3613;
- E. Award punitive/exemplary damages where permitted;
- F. Award costs of investigation, court costs, and reasonable attorney fees under MCL 750.159j, MCL 565.108, MCL 554.636, 42 USC 1988, and all other applicable statutes;
- G. Enter declaratory judgment that:
 - 1. Plaintiff is and was at all relevant times the lawful titleholder of the manufactured home
 - 2. Defendants' use of dissolved entity names in court proceedings was unauthorized and void
 - 3. The eviction was unlawful and void ab initio
 - 4. Defendants' ledger balances are fraudulent and must be corrected

H. Enter injunctive relief:

1. Ordering Defendants to restore possession of the home to Plaintiff or pay fair market value
2. Ordering Defendants to correct all fraudulent ledger entries
3. Ordering Defendants to cease and desist from interfering with Plaintiff's property rights
4. Ordering Defendants to cease and desist from making false statements about Plaintiff's ownership
5. Ordering Defendants to comply with the Mobile Home Commission Act

I. Grant such other and further relief as the Court deems just and proper.

PART VII: JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

VERIFICATION

I, Andrew J. Pigors, declare under penalty of perjury under the laws of the State of Michigan that the factual allegations made on personal knowledge in this Complaint are true and correct to the best of my knowledge, information, and belief.

Dated: _____

Andrew J. Pigors, Plaintiff pro se

[Address]

[Phone]

[Email]

EXHIBIT LIST

Exhibit	Description	Status
A	Affidavit of Mitchell Shafer	[TO ATTACH]
B-1	EGLI Violation Letters/Notices	[TO ATTACH]
B-2	Sewage Complaint Email	[TO ATTACH]
C	Ledgers (Full, Unredacted) + Comparison Tables	[TO ATTACH]
C-1	Ledger/Balance Screenshots	[TO ATTACH]
D-1	Security Camera Photos (Attempted Break-in ~2025-07-03)	[TO ATTACH]
D-2	Side-by-Side Identification (7/03 vs 7/17)	[TO ATTACH]
E	Witness Emails (Mitchell Shafer)	[TO ATTACH]
F	Authority Pack (MCR/MCL Excerpts)	[TO ATTACH]
F-2	Entity Sources (LARA printouts; HOA site; reporting)	[TO ATTACH]
G	Lease (PDF)	[TO ATTACH]
H	Coerced Lease Event Summary	[TO ATTACH]
I	Victim Impact Statement	[TO ATTACH]
J	Damages Workbook (CSV)	[TO ATTACH]
K	Manager Text Messages to Buyer (abandonment claims)	[TO ATTACH]
L	Blocked Sale Documentation (3 instances)	[TO ATTACH]
M	Jeremy Brown Res Judicata Filing	[TO ATTACH]
N	Partridge Securities Check Endorsement (\$1,300.26)	[TO ATTACH]
O	LARA Entity Records (dissolved Shady Oaks MHP, LLC)	[TO ATTACH]
P	Title Documentation (TITLE NEW PIGORS SHADY 1977 Lot 17)	[TO ATTACH]

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14th Circuit Court, Muskegon County, Michigan